

25STCV18344 25STCV18344

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-13

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Case Number: 25STCV18344 Hearing Date: August 13, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

HOUMAN YADKARIM,

Plaintiff,

vs.

JAGUAR LAND ROVER NORTH

AMERICA, LLC., et al.,

Defendants.

Case No.:

25STCV18344

Hearing Date:

August 13, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS' DEMURRER
TO PLAINTIFF'S COMPLAINT;

DEFENDANTS'
MOTION TO STRIKE PLAINTIFF'S COMPLAINT

Background

On June 24, 2025, Plaintiff Houman Yadkarim ("Plaintiff") filed this lemon law action against Defendants Jaguar Land Rover North America, LLC., and Jaguar Land Rover Los Angeles (jointly, "Defendants"), alleging six causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, (5) negligent repair, and (6) fraudulent inducement - concealment.

Defendants now demur to the complaint in its entirety and move to strike Plaintiff's request for punitive damages. Plaintiff opposes. Defendants replied.

Discussion

As an initial matter, Defendants' counsel submits a declaration in support of both the demurrer and motion to strike, which appear to convey the same information.

Defendants' counsel's declaration indicates, inter alia, that "[o]n September 11, 2025, I sent an email to counsel for Plaintiff to meet and confer regarding the demurrer and motion to strike that Defendants intended to file. The email laid out in detail the various pleading issues pertinent to this motion." (Roth Decl., ¶ 2.) Defendants' counsel further attests that "[d]espite reasonable effort by my office, we were unable to informally resolve the pleading issues, thus necessitating the instant motion." (Roth Decl., ¶ 3.) Defendants' counsel attaches the email he sent, which states, inter alia, "[l]et's discuss this over the telephone." (Roth Decl., Ex. A.)

The Court notes that Defendants'

counsel's declaration does not demonstrate that the parties met and conferred by telephone or in person. Although Defendants' counsel's email mentioned meeting and conferring telephonically, there is no indication that Defendants' counsel attempted to call Plaintiff's counsel.

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Emphasis added.) In addition, "[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike." (Code Civ. Proc., § 435.5, subd. (a) [emphasis added].) Such meeting and conferring must be done in good faith with an effort to try to resolve the issues subject to the demurrer.

In light of the foregoing, the hearing on Defendants' demurrer and motion to strike is continued to _____, 2026 at 2:00 p.m. in Dept. 508.

Defendants are ordered to meet and confer with Plaintiff within 10 days of the date of this order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Defendants are to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) and Code of Civil Procedure section 435.5, subdivision (a)(3) within 15 days of this Order. If a timely declaration is not filed, the Court will assume that the parties resolved the underlying issues and the demurrer and motion to strike will go off calendar.

ADDITIONALLY,
THE COURT DID NOT RECEIVE COURTESY COPIES OF THE DEMURRER AND REPLY. IF THE

DEMURRER IS NOT RESOLVED, THE PARTIES MUST DELIVER COURTESY COPIES OF THE DEMURRER
AND REPLY TO THE COURT AT LEAST 3 COURT DAYS BEFORE THE HEARING.

Defendants are ordered to give notice of this Order.

DATED: August
13, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court